

A M E R I C A N
HISTORICAL AND LITERARY CURIOSITIES;

CONSISTING OF

FAC-SIMILES OF ORIGINAL DOCUMENTS RELATING TO THE EVENTS
OF THE REVOLUTION,
&c. &c.

WITH A VARIETY OF

RELIQUES, ANTIQUITIES,

AND

MODERN AUTOGRAPHS.

COLLECTED AND EDITED

BY

JOHN JAY SMITH,
MEMBER OF THE HISTORICAL SOCIETY OF PENNSYLVANIA,

AND

JOHN F. WATSON,
ANNALIST OF PHILADELPHIA AND NEW YORK.

ASSISTED BY AN ASSOCIATION OF AMERICAN ANTIQUARIANS.

SIXTH EDITION; WITH IMPROVEMENTS AND ADDITIONS.

NEW YORK:
G. P. PUTNAM.
1861.

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John F. Watson

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HISTORICAL AND LITERARY CURIOSITIES, PART 05 ***

**AMERICAN HISTORICAL
AND
LITERARY CURIOSITIES**

By John Jay Smith and John F. Watson

Part 5.

P R E F A C E

TO THE FIFTH EDITION.

FIRST SERIES.

THE past has a charm for Americans, as well as for the inhabitants of countries whose history extends far into the shadowy and unknown; *our* early and romantic past has the merit of being known and truly related; everything which adds to these truths is sought for with avidity by the curious and intelligent inquirer. We have now many autograph collectors, who may be viewed in the light of preservers of documents which would otherwise perish or be dispersed; to few, comparatively, are their treasures revealed. It was suggested, therefore, that a few of the most rare and curious "Historical and Literary Curiosities" in the possession of individuals, should be grouped for the amusement and instruction of the present and of future generations, who may well know from printed accounts *what* things were done, but who can also thus learn *how* they were done.

Nearly all the articles in the present collection have been taken by competent artists from the originals of which they purport to be fac-similes. Considerable labor and trouble have been expended in collecting together the varied materials here presented; but it has been with the Editors a "labor of love," rewarded by the pleasure of the pursuit.

The work having been received with extraordinary favor by the public, and a fifth edition being called for, some additions and alterations have been made, which will create increased interest in the volume.

J. JAY SMITH,
JOHN F. WATSON.

* * Fully to understand the work, it is necessary, in turning over the pages, to have constant reference to the Table of Contents, where will be found many explanations for which space could not be found on the plates.

NOTE TO THE SIXTH EDITION.

Notwithstanding the announcement in the second series of this work that the first would not be reprinted, the public has demanded a sixth edition, which has been entirely redrawn, and many highly interesting additions have been made.

PHILADELPHIA, October, 1860.

Part Five

Plate 29.—Copy of the Protection given by the President of Congress to Captain Green, the first American who bore the United States flag to China. In the possession of Henry C. Baird, Esq.
Handwriting of Captain Green. In the possession of J. Jay Smith.

Plate 30.—Autographs of modern authors, naval commanders, &c. &c.
In the possession of the Rev. Rufus W. Griswold, and R. E. Griffith, M. D.

Plate 31.—Miscellaneous autographs of celebrated persons. In the possession of J. Jay Smith.

Plate 32.—Note from Col. Pendleton respecting the new American Court. Note from Lord Sterling relative to his lottery. A copy of his lottery ticket, with various autographs.
In possession of L. J. Cist, F. J. Dreer, Frank M. Etting, J. Jay Smith, &c.

Plate 33.—Certificate of Dr. Franklin's attendance as Assemblyman, with his own and his wife's receipt for the fee. In possession of Frank M. Etting, Esq.
Note from Benedict Arnold a few days before his treason, ordering horses to escape. In possession of J. Jay Smith.

Plates 34 and 35.—Original Surrender of Lord Cornwallis at Yorktown, signed by Cornwallis.

[Plate 29.](#)

[Plate 30.](#)

[Plate 31.](#)

[Plate 32.](#)

[Plate 33.](#)

[Plate 34.](#)

[Plate 35.](#)

I arrived here a few days past & found my
Ship had got here before me, she had very bad weather
during her passage but behaved as well as it was possible

New York Dec 16: 1783
Your Affl. Servt.
J. G. Burr

Most Serene, Serene, most puissant, puissant, high, illustrious, noble, honorable,
venerable, wise and prudent Emperors, Kings, Republicks, Princes, Dukes, Earls, Barons, Lords,
Burgomasters, Counsellors, as also Judges, Officers, Justiciaries & Agents of all the good Cities and places whe-
ther ecclesiastical or secular who shall see these patents or hear them read We the United States of
America in Congress Assembled make known that John Green Captain of the Ship call'd the Emperors of
China is a Citizen of the United States of America and that the Ship which he commands belongs to Citizens
of the said United States and as we wish to see the said John Green prosper in his lawful affairs, our
prayer is to all the beforementioned, and to each of them seperately; where the said John Green shall arrive
with his Vessel & Cargo that they may please to receive him with goodness and to treat him in a becoming
manner, permitting him upon the usual tolls & expences in passing & repassing, to pass, navigate and
frequent the ports, passes and territories to the end to transact his business where and in what man-
ner he shall judge proper: whereof we shall be willingly indebted

Tho Mifflin

Chas Thomson for

In Testimony whereof we have caused the Seal of the
United States to be hereunto affixed - Witness His Excellency
Thomas Mifflin President, this thirtieth day of January in
the year of our Lord one thousand seven hundred & Eighty four and in
the Eighth year of the Sovereignty & Independence of the United
States of America.

Enlarge

Miscellaneous Autographs.

Your very obedient. A. J. Downing Wm. Machine Henry R. Schoolcraft
 Thos. Fuller Edgar Poe. Caroline M. Kirkland R. D. Wood
 T. W. Cayland, Rufus W. Griswold E. C. Ingraham
 W. B. Holmes. Lark Benjamin Joseph C. Neal
 Wm. Neal O. A. Brown
 Our obliged Kell S. Luke Murdock
 Har. P. Burroughs Isaac Wayne

Two Vulture



 E. C. Hopkins
 John Barry
 James Nicholson

Lane Nicholson
Hearney

A Murray
David Foster
J. Macdonough
O H Perry

Chas. Howard
Jat Jones.

Thomas Truxton
Moses Fayor
A. C. Allen
Edward Preble

Re. Gale Mr. Bainbridge
" "
Isaac Hull James Barron
Stephen Decatur La Touche
Mauncey

Miscellaneous Autographs.

Amherst West Gallatin M Dearborn
 Charles F. Johnson Ben Cheney John Penn
 Demas Clinton ~~Wm Lloyd Garrison~~ Richard Linn
 T. A. Inman A. J. Dallas
 Henry Beecher James K. Paul Perry S. Barton Alex. Graydon
 Adam Seybert La. Blockhouse ~~La. Blockhouse~~ Wm. S. Foster
 Dwight Wm. E. Channing Wm. H. Prescott
 Yours Orestis yours & I Pinckney
 Edward Everett. & I Pinckney
 Respectfully study yours, Wm. A. Dana
 Valery Jared Sparks Yours with respect,
 R. C. Bryant L. V. Meadley L. H. Sigourney.
 My truly & J. P. Kennedy yours truly Wm. P. Willis
 William Linnms Wm. T. Tuckerman
 Truly yours friend, Wm. Doane
 Wm. Doane truly yours, Wm. Doane
 Wm. Doane, Wm. Doane Nath. Hawthorne
 Very truly yours Wm. Doane your friend B. Cheever
 Henry W. Longfellow
 Yours truly Yours very truly Fitz-Greene Halleck
 Wm. Doane Payne James M. Smith George Bancroft
 John L. Stephens J. E. Whittier

Enlarge

Dear Sir

Caroline Vieg July 27. 1773

The entertainment of foreign Ambassadors and Strangers of Distinction will oblige you to establish a Court, which in its first impression may stamp our National Character & require some Attention; My wish would be to have it decent, Polite & agreeable, not Gay, profane or Vicious; properly distinguished of Splendor nth Elegance & virtue, but I beg pardon. Those who have so nicely conducted us to the eve of Independence, by so short a road, will find no difficulty in adjusting this small affair.

Dr Sir Y^r very aff^l & ob^d Serv^t
Edm^d Rindleston

New York June 11. 1773.

Sir

I must desire that you will in your News paper publish the same advertisements relative to my Lottery weekly, which you find published in Mr Gaines and Mr Rivingtons papers and to continue them untill the Lottery be drawn which will certainly be in the beginning of the next month, I am

your most humble serv^t

Unpleased to desire Mess^{rs} —
Hill & Sellers to do the same

Hirling

DELAWARE LOTTERY, 1772.
[No. 6576] 8
THE Possessor of this TICKET, will be entitled to the PRIZE drawn to it's Number.
Enter'd by
G. Bancher

Your most obedient
& most humble servant
Cornwallis Eden

Y^r with true regard
Dand. Webster

for Lieut. Loring your most ob^d serv^t very resp^t
Your most obed^t serv^t Alex^r Gardeny Robt. Walsh
John Lawrence for H. Clay
Ride de camp Eastwington

Enlarge

IN ASSEMBLY Sept. 24 1756

THIS is to certify, that Benjamin Franklin
has attended as a Member of Assembly for the
City of Philadelphia, 108 Days, at Six Shil-
lings per Diem, for which there is due to him the Sum of
Thirty two Pounds, Eight Shillings

Signed, by Order of the House,

Paul Wood Speaker

To
The Treasurer of the County of Philad.^a for the Obsolete

Rec^d of M^r Leech Thirty Pounds
\$30. 4. 20) Four Shillings & Pence of the
2. 3-2 Within Order of me

Rich^d. Remondet

B. Franklin

B. Franklin

Mad Quarters Vol. House

Sept. 19. 1756.

Sir

You will please to pick out
of the Horses you have now in your custody
or which You may hereafter receive, A pair
of the best Waggon Horses, as also two of
the very best saddle Horses You can find
for my use, which You'll send to me, as soon
as possible. I am, your most Obed^t Serv^t

Mr. Jefferson

Frederickburg

B. Arnold Major

Enlarge

ORIGINAL SURRENDER OF LORD CORNWALLIS AT YORK TOWN.

ARTICLES of Capitulation settled between his Excellency General Washington, Commander in Chief of the combined Forces of America & France—His Excellency The Count de Rochambeau, Lieutenant General of the Armies of the King of France—Great Cross of the Royal & Military Order of St. Louis—Commanding the Auxiliary Troops of his most Christian Majesty in America—And His Excellency the Count de Grasse, Lieutenant General of the Naval Armies of his Most Christian Majesty, Commander of the Order of St. Louis, command^g in Chief the Naval Army of France in the Chesapeake—on the One Part—And The Right Hon^{ble} Earl Cornwallis, Lieu^t. General of His Britannick Majesty's Forces, Commanding the Garrisons of York and Gloucester and Thomas Symonds, Esq^r., Commanding His Britannick Majesty's Naval forces in York River in Virginia on the other part.

ARTICLE 1st.—The Garrisons of York & Gloucester, including the Officers & Seamen of his Britannic Majesty's Ships as well as other Mariners, to surrender themselves Prisoners of War to the Combined Forces of America & France.—The Land Troops to remain prisoners to the United States—The Navy to the Naval Army of His Most Christian Majesty.

Granted.

ARTICLE 2^d.—The artillery, arms, accoutrements, military chest & public stores of every denomination, shall be delivered unimpaired to the heads of departments appointed to receive them.

Granted.

ARTICLE 3^d.—At 12 o'clock this day the two Redoubts on the left Flank of York to be delivered—the one to a detachment of American Infantry—the other to a detachment of French Grenadiers—The Garrison of York will march out to a place to be appointed in front of the posts at 2 o'clock precisely; with shouldered arms, colours cased & drums beating a British or German march—they are then to ground their arms, and return to their encampment, where they will remain until they are despatched to the place of their destination. Two works on the Gloucester side will be delivered at one o'clock to detachments of French & American troops appointed to possess them.—The Garrison will march out at three o'clock in the afternoon.—The Cavalry with their swords drawn, trumpets sounding, & the infantry in the manner prescribed for the garrison of York; they are likewise to return to their encampment until they can be finally marched off.

Granted.

ARTICLE 4th.—Officers are to retain their side-arms; both officers & soldiers to keep their private property of every kind, & no part of their Baggage or papers to be at any time subject to search or inspection. The Baggage & papers of officers & soldiers taken during the siege, to be likewise preserved for them. It is understood that any property obviously belonging to the Inhabitants of these States in the possession of the Garrison shall be subject to be reclaimed.

Granted.

ARTICLE 5th.—The soldiers to be kept in Virginia, Maryland, or Pennsylvania, & as much by Regiments as possible, & supplied with the same rations of Provisions as are allowed to soldiers in the service of America:—A field officer from each Nation—viz^t.—British, Anspach, and Hessian, & other officers on parole, in the proportion of one to fifty men, to be allowed to reside near their respective Regiments, to visit them frequently, & be witnesses of their Treatment, & that these officers may receive & deliver clothing & other Necessaries for them, for which passports are to be granted when applied for.

Granted.

Enlarge

ARTICLE 6th.—The General, Staff, & other officers not employed as mentioned in the above article, & who chuse it to be permitted to go on parole to Europe, to N. York or to any other American maritime posts at present in the possession of the British forces, at their own option, & proper vessels to be granted by the Count de Grasse to carry them under flags of Truce to New York within ten Days from this date, if possible, & they to reside in a District to be agreed upon hereafter, until they embark. The officers of the civil Departments of the Army and Navy to be included in this Article; passports to go by land to be granted to those to whom vessels cannot be furnished.

Granted.

ARTICLE 7th.—Officers to be allowed to keep soldiers as servants according to the common practice of the service; servants not soldiers are not to be considered as prisoners & are to be allowed to attend their masters.

Granted.

ARTICLE 8th.—The Bonetta sloop-of-war to be equipped & navigated by its present Captain & crew, and left entirely at the disposal of Lord Cornwallis, from the hour that the Capitulation is signed, to receive an aide-de-camp to carry Despatches to Sir Henry Clinton; & such soldiers as he may think proper to send to N. York to be permitted to sail without examination, when his despatches are ready. His Lordship engaging on his part that the ship shall be delivered to the order of the Count de Grasse if she escapes the dangers of the seas; that she shall not carry off any public stores;—any part of the Crew, that may be deficient on her Return, & the soldiers & passengers to be accounted for on her Delivery.

ARTICLE 9th.—The Traders are to preserve their Property, & to be allowed three months to dispose of, or remove them—And those Traders are not to be considered as prisoners of War.

ARTICLE 9th.—The Traders will be allowed to dispose of their effects—the Allied Army having the right of pre-emption—the Traders to be considered as prisoners of War on parole.

ARTICLE 10th.—Natives or Inhabitants of different parts of this Country at present in York or Gloucester are not to be punished on account of having joined the British Army.

ARTICLE 10th.—This article cannot be assented to, being altogether of Civil Resort.

ARTICLE 11th.—Proper Hospitals to be furnished for the sick and wounded; they are to be attended by their own Surgeons on parole, & they are to be furnished with Medicines & Stores from the American Hospitals.

ARTICLE 11th.—The Hospital Stores now in York & Gloucester shall be delivered for the use of the British sick & wounded; passports will be granted for procuring them further supplies from N. York as occasion may require; & proper Hospitals will be furnished for the reception of the sick & wounded of the two Garrisons.

ARTICLE 12th.—Waggons to be furnished to carry the Baggage of the officers attending the Soldiers, & to Surgeons when travelling on account of the sick—attending the Hospitals at public Expence.

ARTICLE 12th.—They will be furnished if possible.

ARTICLE 13th.—The Shipping & Boats in the two Harbors, with all their Stores, Guns, Tackling & Apparel shall be delivered up in their present State, to an Officer of the Navy, appointed to take possession of them—previously unloading the private property, part of which had been on hand for security during the siege.

ARTICLE 14th.—No Article of the Capitulation to be infringed on pretext of Reprisal, & if there be any doubtful Expressions in it, they are to be interpreted according to the common meaning & acceptance of the Words.

Granted.

Done at York in Virginia this 19th day of October 1781.

CORNWALLIS.
THOS: SYMONDS:

TO the Right Honorable the Lords Spiritual and Temporal of Great Britain in Parliament Assembled.

THE MEMORIAL of the Freeholders and other Inhabitants of the Massachusetts Bay, Rhode Island, and Providence Plantations, New Jersey, Pennsylvania, The Government of the Counties of New-Castle, Kent and Sussex, upon Delaware, Province of Maryland.

MOST HUMBLY SHEWETH,

That his Majesty's leige Subjects in his American Colonies, though they Acknowledge due Subordination to that August Body the British Parliament, are entitled, in the Opinion of your Memorialists, to all the inherent Rights and Liberties of the Natives of Great Britain, and have ever since the Settlement of said Colonies Exercised those Rights and Liberties, as far as their Local Circumstances would permit.

That your Memorialists humbly conceive one of the most essential Rights of these Colonists, which they have ever till lately uninterruptedly enjoyed, to be Trial by Jury.

That your Memorialists also humbly conceive another of these essential Rights to be the Exemption from all Taxes but such as are imposed on the People by the Several Legislatures in these Colonies, which Right also they have 'till of late freely enjoyed.

But your Memorialists humbly beg leave to represent to your Lordships, that the Act for granting certain Stamp Duties in the British Colonies in America fills his Majesty's American Subjects with the deepest Concern, as it tends to Deprive them of the two fundamental and invaluable Rights and Liberties above mentioned, and that several other late Acts of Parliament, which extend the Jurisdiction and Power of Courts of Admiralty in the Plantations beyond their limits in Great Britain, thereby make an unhappy distinction as to the Modes of Trial between us and our fellow Subjects there, by whom we have never been excelled in Duty & Loyalty to our Sovereign.

That from the Natural Connexion between Great Britain and America, the perpetual continuance of which Your Memorialists most ardently desire, they conceive that nothing can conduce more to the Interest of both than the Colonists' free enjoyment of their Rights & Liberties, and an affectionate intercourse between Great Britain & them. But your Memorialists (not waving their claim to these Rights, of which, with the most becoming Veneration & Deference to the Wisdom & Justice of your Lordships they apprehend they cannot reasonably be deprived) humbly represent that from the Peculiar Circumstances of these Colonies the Duties Imposed by the Aforesaid Act, and Several other late Acts of Parliament are extremely grievous and burthensome, and the Payment of the said Duties will very soon, for want of Specie, become absolutely impracticable, and that the Restrictions on Trade by the said Acts will not only greatly Distress the Colonies but must be Extremely detrimental to the Trade and true interest of Great Britain.

Your Memorialists therefore impressed with a just sense of the Unfortunate circumstances of the Colonies & the Impending destructive Consequences, which must necessarily ensue from the Execution of those Acts, and animated with the Warmest sentiments of filial Affection for their Mother country most earnestly & humbly

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I arrived here a few days past & found my
Ship had got here before me, she had very bad weather
during her passage but behaved as well as it was possible

Yours Affly Servt
J. G. Brown
N. York Dec 16: 1783

Thos Mifflin
Chas Thomson for

Most Serene, Serene, most puissant, puissant, high, illustrious, noble, honorable,
venerable, wise and prudent Emperors, Kings, Republicks, Princes, Dukes, Earls, Barons, Lords,
Burgomasters, Counallers, as also Judges, Officers, Justiciaries & Agents of all the good Cities and places whe-
ther ecclesiastical or secular who shall see these patents or hear them read We the United States of
America in Congess Assembled make known that John Green Captain of the Ship call'd the Emphels of
China is a Citizen of the United States of America and that the Ship which he commands belongs to Citizens
of the said United States and as we wish to see the said John Green prosper in his lawful affairs, our
prayer is to all the beforementioned, and to each of them seperately; where the said John Green shall arrive
with his Vessel & Cargo that they may please to receive him with goodness and to treat him in a becoming
manner, permitting him upon the usual tolls & expences in passing & repassing, to pass, navigate and
frequent the ports, passes and territories to the end to transact his business where and in what man-
ner he shall judge proper: whereof we shall be willingly indebted

In Testimony whereof we have caused the Seal of the
United States to be hereunto affixed - Witness His Excellency
Thomas Mifflin President, this thirtieth day of January in
the year of our Lord one thousand seven hundred & Eighty four and in
the Eighth year of the Sovereignty & Independence of the United
States of America.

PLAIA

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 Wm. H. Prescott Wm. H. Prescott
 Very truly yours Wm. H. Prescott
 Henry W. Longfellow Wm. H. Prescott
 Yours truly Yours very truly Wm. H. Prescott
 Wm. H. Prescott Wm. H. Prescott
 John L. Stephens J. P. Pinckney

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Dear Sir

Caroline Vez July 27. 1773

The entertainment of foreign Ambassadors and Strangers of Distinction will oblige you to establish a Court, which in its first impression may stamp our National Character & require some Attention; My wish would be to have it decent, Polite & agreeable, not Gay, profane or Vicious; properly dignified of splendor nth Elegancy & virtue, but I beg pardon. Those who have so nicely conducted us to the eve of Independence, by so short a road, will find no difficulty in adjusting this small affair.

Dr Sir Y^r very aff^l & ob^d Serv^t
Edm^d Riddleton

New York June 11. 1773.

Sir

I must desire that you will in your News paper publish the same advertisements relative to my Lottery weekly, which you find published in Mr Gaines and Mr Rivingtons papers and to continue them untill the Lottery be drawn which will certainly be in the begining of the next month, I am

your most humble serv^t

Unpleased to desire Mess^{rs} —
Hill & Sellers to do the same

Hirling

DELAWARE LOTTERY, 1772.
[No. 6576] 8
THE Possessor of this TICKET, will be entitled to the PRIZE drawn to it's Number.
Enter'd by
G. Bancher

Your most obedient
& most humble servant
Cornwallor Eden

Y^r with true regard
Dand. Webster

for Lieut. Loring your most ob^d serv^t very resp^t
Your most obed^t serv^t Alex^r Gardeny Robt. Walsh
John Lawrence for H. Clay
Ride de camp Eastwington

IN ASSEMBLY Sept. 24 1756

THIS is to certify, that Benjamin Franklin
has attended as a Member of Assembly for the
City of Philadelphia, 108 Days, at Six Shil-
lings per Diem, for which there is due to him the Sum of
Thirty two Pounds, Eight Shillings

Signed, by Order of the House,

Paul Wood Speaker

To
The Treasurer of the County of Philad.^a for the Obsolete

Rec^d of M^r Leech Thirty Pounds
\$30. 4. 10⁰ Four Shillings & Tenpence of the
2. 3-2 Within Order of me

Rich^d. Remondet

B. Franklin

B. Franklin

Mad Quarters Vol. House

Sept. 19^a 1756.

Sir

You will please to pick out
of the Horses you have now in your Custody
or which You may hereafter receive, A pair
of the best Waggon Horses, as also two of
the very best saddle Horses You can find
for my use, which You'll send to me, as soon
as possible. I am Your most Obedt Serv^t

Mr. Jefferson

Frederickburg

B. Arnold Major

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ORIGINAL SURRENDER OF LORD CORNWALLIS AT YORK TOWN.

ARTICLES of Capitulation settled between his Excellency General Washington, Commander in Chief of the combined Forces of America & France—His Excellency The Count de Rochambeau, Lieutenant General of the Armies of the King of France—Great Cross of the Royal & Military Order of St. Louis—Commanding the Auxiliary Troops of his most Christian Majesty in America—And His Excellency the Count de Grasse, Lieutenant General of the Naval Armies of his Most Christian Majesty, Commander of the Order of St. Louis, command^g in Chief the Naval Army of France in the Chesapeake—on the One Part—And The Right Hon^{ble} Earl Cornwallis, Lieu^t. General of His Britannick Majesty's Forces, Commanding the Garrisons of York and Gloucester and Thomas Symonds, Esq^r., Commanding His Britannick Majesty's Naval forces in York River in Virginia on the other part.

ARTICLE 1st.—The Garrisons of York & Gloucester, including the Officers & Seamen of his Britannic Majesty's Ships as well as other Mariners, to surrender themselves Prisoners of War to the Combined Forces of America & France.—The Land Troops to remain prisoners to the United States—The Navy to the Naval Army of His Most Christian Majesty.

Granted.

ARTICLE 2^d.—The artillery, arms, accoutrements, military chest & public stores of every denomination, shall be delivered unimpaired to the heads of departments appointed to receive them.

Granted.

ARTICLE 3^d.—At 12 o'clock this day the two Redoubts on the left Flank of York to be delivered—the one to a detachment of American Infantry—the other to a detachment of French Grenadiers—The Garrison of York will march out to a place to be appointed in front of the posts at 2 o'clock precisely; with shouldered arms, colours cased & drums beating a British or German march—they are then to ground their arms, and return to their encampment, where they will remain until they are despatched to the place of their destination. Two works on the Gloucester side will be delivered at one o'clock to detachments of French & American troops appointed to possess them.—The Garrison will march out at three o'clock in the afternoon.—The Cavalry with their swords drawn, trumpets sounding, & the infantry in the manner prescribed for the garrison of York; they are likewise to return to their encampment until they can be finally marched off.

Granted.

ARTICLE 4th.—Officers are to retain their side-arms; both officers & soldiers to keep their private property of every kind, & no part of their Baggage or papers to be at any time subject to search or inspection. The Baggage & papers of officers & soldiers taken during the siege, to be likewise preserved for them. It is understood that any property obviously belonging to the Inhabitants of these States in the possession of the Garrison shall be subject to be reclaimed.

Granted.

ARTICLE 5th.—The soldiers to be kept in Virginia, Maryland, or Pennsylvania, & as much by Regiments as possible, & supplied with the same rations of Provisions as are allowed to soldiers in the service of America:—A field officer from each Nation—viz^t.—British, Anspach, and Hessian, & other officers on parole, in the proportion of one to fifty men, to be allowed to reside near their respective Regiments, to visit them frequently, & be witnesses of their Treatment, & that these officers may receive & deliver clothing & other Necessaries for them, for which passports are to be granted when applied for.

Granted.

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